

M.S. Notice 30 of 2009

No. SS/MISC(23)/2007

Dated: 22nd September, 2009

Sub: Notice to Shipowners, Ship Operators and Classification Societies on inspection of the outside of the ship's bottom of Indian Cargo Ships.

1. Reference is invited to M.S. Notice No 4 of 2008 vide which Directorate had advised the shipowners to curtail their requests with regard to extension of Dry Docking / Special Surveys of Indian vessels on account of clinched reasons such as non availability of dry-docking slot, public interest etc. In most of the cases it is observed that extensions are sought by and large on account of improper advance-planning, lack of drydocking facilities in India and in some cases, a preempted conscious attempt to postpone the surveys due to commercial reasons. Shipowners must also bear in mind that the maximum period of 36 months between two bottom inspections is so permitted in order to avoid unforeseen delays due to various reasons such as non-availability of dry docking facility and un-certainty of ship's voyage schedule.
2. Notwithstanding the above provisions / guidelines issued by the Directorate, it is not only observed that there is no reduction in the number of requests from shipowners for extension of drydocking / special surveys, but regrettably, some shipowners seek these extensions as a routine exercise. Directorate would like to reiterate that, while it fully appreciates the commercial priorities of shipowners, it can not help the shipowners in compromising with safety
3. In consideration of the seriousness of the matter, the Directorate has decided to follow the following procedure in the case of Dry Docking / Special Survey extensions.
 - a. Directorate shall not consider extension of surveys for commercial reasons or in situations attributable to poor advance planning.
 - b. In case any survey extension is to be considered, ship owners will have to establish with documentary evidence as regards their diligent and punctual planning and the genuine efforts carried out by them for completing the surveys within the stipulated window period. A number of perfunctory though punctual letters to the drydock, shall not be adequate proof of the shipowners' diligence in this regard.
 - c. In case the Directorate is convinced that owners have taken every necessary and advance measures (realizing that dry-docks are always in great demand) for carrying out the surveys within the window period in a diligent manner, but are unable to obtain a drydocking slot due to reasons beyond their control for completing the surveys, Directorate may consider postponement of surveys related to dry docking for a period of 1 month subject to satisfactory surveys by the Class and Class recommending / certifying the vessel's seaworthiness for the proposed period of extension. Directorate may consider further extension of surveys for another 1 or 2 months in certain unavoidable situations subject to an underwater survey using CCTV in the presence of Class and after a detailed review of the progress of other surveys, which could be carried out in the afloat condition and the action taken by the company towards allotment of a drydocking slot in India or abroad.

- d. Owners should not, however, consider the provision at para 'c' above as an implicit permission for grant of extension of surveys, and Directorate reserves the right to deny any extension if it is convinced that the request from the owners do not merit consideration due to poor advance planning or the condition of the ship is reported to be unsatisfactory.
- e. Shipowners may take note that the Directorate, henceforth, would require to deny extension of surveys beyond the grace period of three months from the due date of surveys as permitted under para 'c' above, particularly for those shipowners who make such applications for their vessels as a matter of routine.
- f. This Circular shall take effect from 1st December, 2009 and as such all shipowners must take appropriate steps to ensure that this notice is not violated.

4. This issues with the approval of Chief Surveyor with the Government of India.

Sd/-

(Suresh Kumar, R.M.)

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